

CLARITY – Commercial Terms Summary (Indicative)

Pricing and Discounts

- 1.1 Wholesale prices shall be set by Clarity and communicated via price lists.
- 1.2 Prices may be revised upon reasonable notice.
- 1.3 Volume-based discounts may apply subject to thresholds.
- 1.4 Promotional pricing shall be time-limited and conditional.
- 1.5 Recommended retail prices are indicative only.
- 1.6 The Partner remains free to set resale prices subject to applicable law.
- 1.7 All prices are exclusive of taxes unless stated otherwise.
- 1.8 Currency shall be specified in the Agreement.

Orders and Acceptance

- 2.1 Orders shall be submitted in writing or via agreed electronic systems.
- 2.2 All orders are subject to acceptance by Clarity.
- 2.3 Clarity may reject or modify orders based on availability.
- 2.4 Order confirmations shall specify quantities and delivery dates.
- 2.5 Minimum order quantities may apply.
- 2.6 Changes or cancellations require Clarity's consent.
- 2.7 Backorders may be created for unavailable items.
- 2.8 Title transfer shall be defined in the Agreement.

Payment Terms

- 3.1 Standard payment terms may be net thirty (30) days from invoice date.
- 3.2 First orders may require prepayment.
- 3.3 Late payments may accrue interest at a specified rate.
- 3.4 Clarity may suspend deliveries in case of overdue amounts.
- 3.5 Set-off is excluded unless mandated by law.
- 3.6 Invoices shall be deemed accepted unless disputed within a defined period.
- 3.7 Bank charges shall be borne by the Partner.
- 3.8 Credit limits may be adjusted at any time.

Delivery and Risk

- 4.1 Delivery terms shall follow agreed Incoterms (e.g., EXW, DDP).
- 4.2 Delivery dates are indicative unless expressly stated as firm.
- 4.3 Risk of loss shall transfer in accordance with the applicable Incoterm.
- 4.4 Partial deliveries are permitted unless otherwise agreed.
- 4.5 The Partner shall inspect goods upon receipt.
- 4.6 Claims for visible damage shall be notified promptly.
- 4.7 Customs duties and import formalities shall be allocated per Incoterms.
- 4.8 Force majeure may affect delivery schedules.

Returns and Warranty

- 5.1 Clarity warrants products against manufacturing defects for twelve (12) months.
- 5.2 Warranty excludes normal wear and misuse.
- 5.3 Returns require prior authorization and RMA number.
- 5.4 Defective products may be repaired, replaced, or credited at Clarity's option.
- 5.5 Non-defective returns are not accepted unless agreed.
- 5.6 The Partner shall follow recall procedures where applicable.
- 5.7 Warranty claims shall include supporting evidence.
- 5.8 This summary is subject to the Agreement.